

Court No. - 21

Case :- WRIT - C No. - 12199 of 2023

Petitioner :- Shamshad Ahmad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rupendra Kumar Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Counsel for the respondent-electricity department prays for and is granted time to obtain instructions.

List as fresh on 20/4/2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.4.2023

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rupendra Kumar Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed challenging the recovery citation dated 25.11.2022 issued by respondent no. 4 for recovery of a sum of Rs. 1,00,407/-, plus other charges from the petitioner in a case of alleged theft of electricity.

The petitioner has a domestic connection of 2KW. He applied for a separate connection for tubewell, but when it was not released, he filed a complaint before the District Consumer Forum. It was decided by order dated 17.3.2017 and a direction was issued to the Electricity Department to forthwith release electricity connection and Rs. 15,000/- was awarded as damages and Rs. 3,500/- as cost of litigation in favour of the petitioner. The Electricity Department preferred an appeal against the said order. The Appellate Forum modified the order of District Consumer Forum and reduced the damages from Rs. 15,000/- to Rs. 5,000/-, but did not interfere with the amount awarded as cost, i.e. Rs. 3,500/-. The specific case of the petitioner is that since thereafter, the officials of the respondent Electricity Department were trying to implicate the petitioner in false case and with this objective in mind, they lodged a first information report against him on 24.4.2022. It was followed by a notice of provisional assessment dated 11.5.2022. The petitioner filed objection against the same on 16.6.2022. Without deciding the objection, respondent no. 2 proceeded to issue demand notice, compelling the petitioner to file a complaint

before the Permanent Lok Adalat. During its pendency, the respondents have forwarded recovery certificate to the Tehsil Authorities and in pursuance of which, the impugned citation has been issued.

The specific case of the petitioner is that the impugned recovery citation is wholly illegal and without jurisdiction, inasmuch as, there is no order of final assessment in existence. The objection filed by the petitioner has not been considered till date. The procedure adopted by the respondent Electricity Department is in complete violation of the procedure prescribed under Clause 8.1 of the Electricity Supply Code, 2005.

Having regard to the aforesaid submissions, we permitted learned counsel for the respondent Electricity Department to obtain instructions.

Sri Pranjal Mehrotra, learned counsel for the respondent Electricity Department, is in receipt of instructions and he admits that there is no order of final assessment in existence. He submits that the respondent realizing the mistake, has already withdrawn the recovery citation.

Daily, we are coming across cases where the Assessing Authority is issuing recovery certificates without there being any order of final assessment. It is not only causing harassment to the consumers, but is unnecessarily burdening the docket of this Court.

Since the impugned recovery has already been withdrawn, but it had entailed unnecessary harassment to the petitioner and therefore we allow the instant petition with a cost of Rs. 10,000/- to be adjusted in the future bills of the petitioner and which we leave it open to the Department to realize from the concerned officer.

Registrar (Compliance) will communicate the instant order to the Managing Director of the concerned DISCOM so that the manner in which the officers of the Electricity Department are discharging their duties, comes to his notice and action as deemed necessary, is taken by him.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 20.4.2023

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